

Roman civil law

By the 4th century CE, Roman civil law consisted of multiple ad hoc imperial decrees and extensive juristic writings. Some attempts had been made to bring order to the morass of imperial legal decrees—most notably in 438 CE, in the *Code of Theodosius*.

A more successful reform was achieved by Emperor Justinian, who established a legal commission tasked with finding all valid laws and weeding out those which were defunct, defective, or contradictory. In 529, he published his *Code*, valid throughout the Eastern Roman Empire. Four years later, he authorized the publication of the *Digest*, a summary collection of the writings of jurists through previous centuries. The *Institutions*, a basic handbook for law students (also published in 533), completed the *Corpus juris civilis*, which was later to prove a very useful source for Gratian.



Justinian was emperor of the Eastern Roman (Byzantine) Empire from 527 to 565. He tried, with some success, to reconquer the lost western half of the Roman Empire.

Justinian proposes a **systematic framework** of Roman civil law.

Gratian **builds on the Justinian Code**, proposing a similar systematic framework of **canon law** that included the following key principles.

Secure property rights for new owners.

The **freedom to choose** whether or not to **marry**.

The right **not to be tried twice** for the same crime.

the only reliable information about him relates to a legal case in Venice in 1143, in which he was cited as an authority by the papal legate (a clerical representative of the Pope). It seems likely that Gratian was associated with the prestigious legal school in Bologna. Despite only scant information about his life, the impact of the *Decretum* itself was enough to secure Gratian the title of “Father of Canon Law.”

The *Decretum* was written in two stages—sometime after 1139, and then around 1150. (Some scholars argue there are two versions of the *Decretum*.) The first part of the work is divided into 101 subsections, the second deals with 36 particular questions, and the third addresses matters related to the sacraments.

Gratian adopted a systematic approach throughout, appealing to earlier authorities as models and using reason to resolve problems. He used the *Corpus juris civilis* as an invaluable source of Roman law, and from 1150, he drew in particular

on Justinian’s *Digest*, using it to illustrate issues such as the effect of adoption on the prohibited degrees of marriage and divorce within a family. In other areas, such as rules on the behavior of clergy and the payment of tithes—which did not have precedents in Roman law—Gratian had to derive rules from the Bible, Church councils, and papal decretals.

Intent, double jeopardy, and marriage

In several areas in particular, Gratian’s formulation of Church law established rulings that would have far-reaching implications for the Church. In the second part of the *Decretum*, for example, he devotes a chapter to the subject of land property rights, which was an issue of grave importance to the Church as a major landowner. The problem was that Church land had often been “alienated”—leased or allowed to be used by a new owner. The latter, or a third party who the land was passed onto,